Supreme Court, U.S.
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No. 98-1072

In The

Supreme Court of the United States

October Term, 1998

PAUL E. PATTON,

Cross-Petitioner,

v.

ROBERT E. GABLE, A.B. CHANDLER, III, KENTUCKY REGISTRY OF ELECTION FINANCE, DONALD L. COX, MORRIS E. BURTON, JAMES E. BOYD and JOHN Y. BROWN, III,

Cross-Respondents.

On Petition For A Writ Of Certiorari To The United States Court Of Appeals For The Sixth Circuit

REPLY BRIEF OF CONDITIONAL CROSS-PETITIONER

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REPLY BRIEF OF CONDITIONAL CROSS-PETITIONER

The request in the Conditional Cross-Petition is grounded on principles of fundamental fairness and simple judicial efficiency. If this Court is to re-evaluate the constitutionality of Kentucky's campaign finance reform law as requested by original Petitioner Gable, such review, to be effective at all, must encompass all the law's essential working components. Mr. Gable's response urges on the Court a remarkable double standard of review that would carve out from this case, and hence leave unresolved, the critical issue concerning a state's right to effectively promote its campaign finance reform. His flawed analysis and misstated facts warrant this reply.

First, Mr. Gable insists on mischaracterizing the nature and effect of the 28-Day Timing Window on internal contributions. It does not bar *expenditures* at all. Non-subsidized candidate slates can spend as much as they wish whenever they wish. Further, candidates can contribute as much as they wish to their own slate's campaign. The only regulation imposed by the 28-Day Timing Window relates to the time in which candidates' money must be deposited into the campaign account. Without such a notice requirement, subsidized candidates cannot be afforded "meaningful participation" in the election process.

Respondent at no time disputes the devastating effect that removing the 28-Day Timing requirement on internal contributions would have on Kentucky's campaign finance system. Judge Cudahy, dissenting from his two

colleagues below, stated the "invalidation threatens to derail this reform effort." Pet. App. at 24a. Without the limitation, Judge Cudahy predicted that self-financed candidates such as Mr. Gable would be "free to ambush an adversary with a torrent of new cash after the last reporting deadline, when a response is no longer possible." Pet. App. at 25a. "A provision that forbids this unfair practice should not require a defense." *Id.*

Second, Mr. Gable's unequivocal contention that "the issue presented in the cross-petition was resolved by this Court's decision in *Buckley v. Valeo*," 424 U.S. 1 (1976), misapprehends both the issue in this case and in *Buckley*, and flatly ignores concessions to the contrary in the courts below. Response at 4. *Buckley* addressed limits on the **amount of expenditures** candidates can make in support of their own campaigns. As the district court conceded, *Buckley* does not address "whether a 'time' restriction limiting when a candidate may contribute to his own campaign is constitutionally permissible." Pet. App. at 32a. And, as the court of appeals majority acknowledged, the 28-Day Window is distinguishable from the *Buckley* limitation in that the Window's application to candidate contributions strengthens incentives for participation in Kentucky's campaign finance scheme," which is clearly aimed at the prevention of actual and apparent corruption of the political process. Pet. App. at 20a. *See also* Pet. App. at 24a-27a, where dissenting Judge Cudahy distinguishes *Buckley* on several other fronts. Accordingly, when Mr. Gable tells this Court in his original Petition that "[t]his case raises issues of serious national importance that were not resolved by this Court's decision in *Buckley v. Valeo*, 424 U.S. 1 (1976)," one

of those issues must be whether the 28-Day Timing Window on internal contributions is constitutional. Pet. at 6.

Perhaps most disturbing in the response is the proffered double standard for certiorari worthiness. In his original Petition, Mr. Gable tells this Court that "a growing number of states are adopting novel schemes" relating to campaign finance controls and that "whether such measures unconstitutionally penalize nonparticipating candidates' rights to spend political money free of government-imposed limits is an issue requiring this Court's urgent resolution." Pet. at 6-7. In the response to Governor Patton's Cross-Petition, however, Mr. Gable states that a question relating to the constitutionality of an integral component of Kentucky's so-called novel scheme is "not a pressing matter of national importance." Response at 6. And, although he claims the issues he presents concerning the same statute may produce electoral disruption and confusion, he finds no such danger vis-a-vis the constitutionality of the 28-Day Timing Window on internal contributions. The inconsistency is simply irreconcilable.[1]

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[1] Indeed, Mr. Gable chastises Cross-Petitioner Governor Patton for citing to a California statute and neglecting to mention an ongoing court challenge to its constitutionality. This rebuke is remarkable in light of the fact that it was Gable himself who relied on Cal. Gov. Code § 85404, without mention of the litigation, in his original Petition to support his premise that this Court's oversight is needed to resolve constitutionality issues raised in the "growing number" of campaign finance laws in effect or under consideration in California and other cited states. Governor Patton's reliance on Mr. Gable's own cited authority merely points out the similarity between the notice requirement in the California law and the internal contribution

In sum, Mr. Gable offers no credible support for his request that this Court's review of Kentucky's campaign finance law, if granted, be piecemeal. To be sure, the only way to achieve the goals of consistency and order promoted so vigorously in the original Petition is for this Court, should it grant the Petition, also to grant the Cross-Petition and decide *all* issues relating to the constitutionality of the Trigger provision and the 28-Day Timing Window.

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timetable in Kentucky's. To say that reference to ongoing litigation is required of the Cross-Petitioner but not the Petitioner is but one example of Mr. Gable's double standard. Further, contrary to Mr. Gable's suggestion, the court of appeals in *California Prolife Council Political Action Committee v. Scully*, 1999 WL 2549 (9th Cir., Jan. 5, 1999), made no decision with respect to internal expenditure provisions of § 85404. It simply affirmed the district court's issuance of a preliminary injunction and ordered a full trial on the merits, explicitly refusing to review whether the result reached by the district judge was correct.

CONCLUSION

For the reasons stated above, the Court should grant the Conditional Cross-Petition for writ of certiorari.

Respectfully submitted,

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